

Session 20: “Slavery” Laws

Key Takeaways

- The goal of these slavery laws is to protect the vulnerable from exploitation by the powerful.
- The literary structure of the book connects labor laws, or laws regulating indentured servitude, to the Sabbath pattern, emphasizing necessary rest for humans and providing a check against exploitation.
- Considering the cultural backdrop, the laws of Exodus introduce restrictions and values that will make slavery untenable.

Objecting to the Old Testament

“Slavery was bad for [the Israelites] to experience but acceptable for them to initiate and practice.”

Kirk-Duggan, Cheryl (2016). “Let My People Go.” [Voices From the Margin](#) (edited by R.S. Sugirtharajah). Orbis Books.

The Case of the Male ‘Ebed

Exodus 21:2-6 Instructor's Translation

² If you hire a Hebrew ‘ebed, six years he shall serve but in the seventh he may leave freely at no cost. ³ If he came alone, he shall leave alone. If he possessed a wife, his wife may leave with him. ⁴ If his master gave him a wife and she bore him sons or daughters, the woman and her offspring will belong to her master, and he must leave alone. ⁵ But if the servant insists, “I love my master, my wife, and my children. I will not go free!” ⁶ then his master shall bring him to God and he shall bring him to the door or to the doorframe so his master may pierce his ear with an awl and he shall serve him permanently.

Notice the characteristics of the ‘ebed in these verses.

- Voluntary hired worker
- Limited term of service
- Free to leave and to marry
- Permanent service is voluntary

The goal of these laws was to protect the vulnerable from exploitation by the powerful.

The Case of the Female ‘Amah

Exodus 21:7-11 Instructor's Translation

⁷ But if a man sells his daughter as an *’amah*, she shall not leave as the male servants leave. ⁸ If she is troublesome in the eyes of her master who has claimed her for himself, then he must let her be ransomed. He is not allowed to sell her to foreign people because he broke the agreement with her. ⁹ But if he has claimed her for his son, he must treat her in accordance with daughters’ rights. ¹⁰ If he takes another [wife] for himself, he may not reduce her food, clothing, or marital rights. ¹¹ But if he does not give her these three, then she may leave without paying any money.

Notice the characteristics of the *’amah* in these verses.

- An *’amah* marries into the household
- Fathers always arranged marriages for their daughters
- “Bride price” is expected for the bride’s family

The goal of these laws was to guard against sexual exploitation.

Literary Structure of the Book of the Covenant

A Exod. 20:23-26: worship regulations		
	B Exod. 21:2-11: Sabbath patterns for servitude	
		C Exod. 21:12-23:9: neighbor laws (injuries, property, justice)
	B' Exod. 23:10-12: Sabbath patterns for land and work	
A' Exod. 23:13-19: worship regulations		
Literary Structure of the Book of the Covenant. Created by Carmen Imes for BibleProject Classroom: Exodus Overview (2021).		

These laws are oriented toward freedom and Sabbath rather than slavery.

Attention to Genre and Context

Understanding these laws within the proper context helps us make sense of them as we read. The first thing to notice is the genre. These are casuistic laws (“if ... then ...”) and are given to help regulate non-ideal situations.

Next, it is helpful to keep each of these individual laws fixed within the context of the broader system of protections created by other laws.

- YHWH brought them out of servitude (Exod. 20:2)

- Servants and foreigners get a Sabbath rest ([Exod. 20:10](#))
- Kidnapping strictly prohibited ([Exod. 21:16](#))
- Death penalty for killing a servant ([Exod. 21:20-21](#))
- Release for permanently injured servants ([Exod. 21:26-27](#))
- Accidental death of servant is taken seriously ([Exod. 21:32](#))
- Mistreatment of foreigners prohibited ([Exod. 22:21](#))
- Taking advantage of vulnerable prohibited ([Exod. 22:22](#))
- No interest on loans to the needy ([Exod. 22:25](#))
- No denying justice to the poor ([Exod. 23:6](#))
- Unplowed (Sabbath) fields support the poor ([Exod. 23:10-11](#))

The Case of the Injured Servant

Exodus 21:20-21 Instructor's Translation

²⁰ If a man strikes his *'ebed* or his *'amah* with a rod, and he dies under his hand, he shall surely be avenged.

²¹ However, if (after) a day or two days he stands up, he shall not be avenged, for it/he is his silver.

Notice the characteristics of the law in these verses.

- Death penalty for killing a servant
- [Verses 18-19](#) are concerned with the loss of labor. The aggressor must pay the injured person for loss of work time. In the case of a hired servant, the master bears the loss of labor himself, since he is responsible for the injury. He cannot add to the debt of the servant.
- Hoffner: "It" refers to the fee, not the servant
- Alternative: No need to enact "eye for an eye" because the master has already borne the loss of his servant's labor as he recovered.

A Wider Vision on Old Testament Law

"The Old Testament and later the New Testament create an imaginative world in which slavery becomes more and more untenable."

McCaulley, Esau (2020). [Reading While Black: African American Biblical Interpretation as an Exercise in Hope](#). IVP Academic. 142.

"[The biblical slavery laws were] calculated to make readers uneasy about the ethics of slave-owning. These laws represent an early strategy for raising readers' conscience about the institution of slavery and (implicitly) calling it into question. Overall, their tactics reflect an ethic of concern for the vulnerable."

Morrow, William (2017). [An Introduction to Biblical Law](#). William B. Eerdmans. 98.

Reflection Question

How do the points discussed in this session help you grapple with these difficult laws? What questions do you still have?